



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 13, 2022

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202103594 regarding Detective Genaro Barreiro, Tax No. 950050 (2022-27160)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter in their entirety and has determined that the actions taken by Detective Barreiro, which underlie the substantiated CCRB allegations, do not warrant disciplinary action.

In this matter, the CCRB substantiated allegations of an improper entry and search against Detective Barreiro in connection with his involvement in an effort to apprehend a suspect wanted for committing a felony assault. Detective Barreiro accompanied other detectives to a residence where the wanted individual was believed to be living. The lead detective in the case was able to reach a non-present resident, the wanted individual's brother, by telephone. The lead detective had established a relationship with this brother, who had, on a previous occasion, assisted the detective in safely apprehending the wanted individual. The telephoned brother returned to the location and provided access to the residence to search for the wanted individual. Detective Barreiro was not present for or aware of the details of the other detective's telephone conversation with the brother, as he had been covering the rear of the residence. Detective Barreiro remembered coming to the front door from the rear of the location and the wanted individual's brother saying to the detectives, essentially, come in – he's not here. These facts point to a reasonable belief on the part of Detective Barreiro that the resident who arrived had given consent to search for his brother. The lead detective led the search and Detective Barreiro accompanied him, to ensure their safety. After a brief, uneventful, and unsuccessful search for the assault suspect, the detectives left the residence.

Therefore, based on the foregoing, Detective Barreiro will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (Prohibited Conduct/Abuse of

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Authority – Entry) and Administrative Guide Procedure 304-06 (Prohibited Conduct/Abuse of Authority – Search).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

Lourdes Soto

Deputy Chief

Commanding Officer

Police Commissioner's Office